

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 2, 2026 TIME: 8:30 A.M.

No. 21CV00575

BANK OF AMERICA, N.A. v. CORNEJO

(UNOPPOSED) PLAINTIFF BANK OF AMERICA'S MOTION FOR ENTRY OF JUDGMENT PURSUANT TO STIPULATION (CCP § 664.6)

Pursuant to Code of Civil Procedure section 664.6 and the settlement agreement between the parties (Forbes Declaration, Exhibit 1), judgment in the sum of \$7,977.81 will be entered in favor of plaintiff and against defendant Mael Alejandro Cornejo. The Court will sign the proposed orders submitted by plaintiff.

No. 22CV02837

DOE v. SANTA CRUZ CITY SCHOOLS

PLAINTIFF'S MOTION TO SET ASIDE DISMISSAL

The motion is denied.

A first amended complaint ("FAC") was filed on August 13, 2023. Plaintiff asserts he was a victim of childhood sexual abuse. He argues the perpetrator, Steven Myers, was employed by Defendant Santa Cruz City Schools ("District" or "SCCS"). Myers worked at Branciforte Middle School. Myers had a meeting with plaintiff and his parents, and Myers recommended that plaintiff participate in the Traveling School Summer Program, which Myers supervised and was part of the District. (FAC at ¶ 19.) Based upon Myers's recommendation, plaintiff participated in the Traveling School Summer Program in 1983. It was at this time plaintiff alleges he was groomed for abuse, sexually assaulted, and abused by Myers. (FAC at ¶ 18.) Causes of action alleged are (1) childhood sexual abuse as to Myers, (2) intentional infliction of emotional distress as to Myers, (3) negligent hiring, supervision, and retention of unfit employee pursuant to Government Code sections 815.2 and 820 against SCCS, (4) failure to report suspected child abuse pursuant to Government Code sections 815.2, 815.6, and 820 against SCCS, (5) negligent supervision of minor pursuant to Government Code sections 815.2 and 820 against SCCS, and (6) negligence against Does 41-50.

On June 12, 2025, this Court granted plaintiff's counsel's motion to be relieved. Plaintiff did not retain new counsel. Following three orders to show cause requiring plaintiff's appearance, and plaintiff's failure to appear, this Court finally dismissed the action with prejudice on May 14, 2026.

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Although petitioner is self-represented, such a party is to be treated like any other party and is entitled to the same, but no greater, consideration than other litigants and attorneys. (*Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944.)

The Court denies the motion for several reasons. First, plaintiff fails to provide any legal basis for his motion, as required by Code of Civil Procedure section 1010, and failed to serve it on defendant as required by Cal. Rules of Court, rule 3.1300(a). Second, assuming plaintiff brings his motion subject to Code of Civil Procedure section 473(b), he fails to establish any mistake, inadvertence, surprise or neglect warranting discretionary relief. Finally, plaintiff alludes to service or mail issues (not accepting mail at his address, certified letter sent in the name of John Doe but not his real name) but it is not clear what basis he has for vacating the dismissal. Therefore, the Court denies his motion.

No. 24CV03044

SANCHEZ v. MIRON

DEFENDANT'S MOTION TO COMPEL ANSWERS AT THE DEPOSITION OF PLAINTIFF

The motion to compel is denied, as discussed below.

I. COMPLAINT AND MOTION

This is an automobile accident case. Adolfo Sanchez ("Sanchez" or "plaintiff") filed this complaint against the Chrisp Company and Paul Miron. The complaint alleges that Miron was driving while in the course and scope of his employment with the Chrisp Company when he failed to yield the right of way to Sanchez, who was on a bike. The two collided and Sanchez asserts he sustained injuries. The complaint alleges negligence and negligence per se.

Defendants bring this motion to compel Sanchez to answer three questions he did not answer at his deposition:

- (1) "[W]ho, if anyone suggested that you go to Aloha Sports Chiropractic?"
- (2) "[W]ho suggested that you go to Synergex Medical with Dr. Vargas for pain management?"
- (3) "[W]ho suggested that you go to see Dr. Nathaniel Grunsky?"

After these questions were posed, plaintiff's counsel instructed him not to answer based upon attorney-client communication. Defendants argue that whether an attorney referred a client to a treating physician does not constitute a protected confidential communication and is